

An Act

ENROLLED SENATE
BILL NO. 1859

By: Reinhardt and Hines of the
Senate

and

Chapman, Hill, and Waldron
of the House

An Act relating to the Oklahoma State Bureau of Investigation; creating the Cyber Crime and Fraud Unit; prescribing purpose and duties of the unit; prohibiting provisions from being construed to expand the jurisdiction of the Bureau; authorizing the Director of the Bureau to reassign personnel and resources to carry out certain duties; authorizing the Bureau to promulgate rules; creating the Cyber Crime and Fraud Unit Fund; providing sources of funds; providing for expenditures from fund; providing for codification; providing an effective date; and declaring an emergency.

SUBJECT: Oklahoma State Bureau of Investigation

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 150.19c of Title 74, unless there is created a duplication in numbering, reads as follows:

A. There is hereby created within the Oklahoma State Bureau of Investigation a Cyber Crime and Fraud Unit. The Unit shall operate as an internal division of the Bureau and shall exercise only those investigative powers and the jurisdiction granted to the Bureau by Oklahoma Statutes.

B. The purpose of the Cyber Crime and Fraud Unit shall be to enhance the capacity of the Bureau to investigate:

1. Cyber-enabled criminal activity including intrusions, network breaches, ransomware, digital extortion, and online exploitation;

2. Financial fraud and related schemes including cyber-facilitated fraud, identity theft, and complex financial deception; and

3. Criminal activity involving digital evidence, consistent with the existing statutory authority of the Bureau.

C. Nothing in this act shall be construed to expand or modify the jurisdiction of the Bureau. The Unit may only initiate or conduct investigations as follows:

1. Upon request or referral from a district attorney, law enforcement agency, or state officer authorized under existing law;

2. Upon direction of the Governor, consistent with current statutory authority; or

3. As the Bureau is otherwise permitted under existing statutes.

D. The Cyber Crime and Fraud Unit shall:

1. Conduct investigations involving cybercrime, digital evidence, and fraud-related offenses;

2. Provide digital forensics, technical assistance, and analytical support to Bureau agents and requesting agencies;

3. Coordinate with federal, state, tribal, and local partners on cyber and fraud investigations;

4. Develop and provide training to law enforcement agencies on cybercrime trends, digital evidence handling, and fraud prevention; and

5. Maintain specialized personnel, including agents, analysts, forensic examiners, and technical support staff.

E. The Director of the Bureau may assign personnel, reallocate resources, and establish internal procedures necessary to carry out the responsibilities of the Unit.

F. The Bureau may promulgate rules to effectuate the provisions of this act.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 150.19d of Title 74, unless there is created a duplication in numbering, reads as follows:

There is hereby created in the State Treasury a revolving fund for the Oklahoma State Bureau of Investigation to be designated the "Cyber Crime and Fraud Unit Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of any monies received by the Bureau for deposit in the fund. All monies accruing to the credit of such fund are hereby appropriated and may be budgeted and expended by the Oklahoma State Bureau of Investigation for the purpose of carrying out the duties and functions prescribed in Section 1 of this act. Expenditures from such fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

SECTION 3. This act shall become effective July 1, 2026.

SECTION 4. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 14th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____